If your new car has a
serious warranty defect
that the manufacturer
cannot fix, even after
multiple attempts, you
may be eligible to get
your vehicle repurchased or replaced.

That is California’s

Lemon Law.

Revised: 9/24 PDE_24-184 ARBITRATION CERTIFICATION PROGRAM

ARBITRATION CERTIFICATION PROGRAM
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CALIFORNIA’S

LEMON LAW

Q&A

DOES CALIFORNIA’S LEMON LAW

APPLY TO MY VEHICLE?

A: The Lemon Law covers the following
new and used vehicles that come with the manufacturer’s new vehicle warranty:
• Cars, pickup trucks, vans, and SUVs.
• The chassis, chassis cab, and drive train
of a motor home.
• Dealer-owned vehicles and demonstrators.

• Vehicles purchased or leased primarily for
business use. (Business fleet requirements are less than five vehicles and gross
vehicle weight of less than 10,000 lbs.)
• Vehicles purchased or leased for
personal, family, or household purposes.

WHAT IF THE MANUFACTURER OR DEALER CANNOT FIX MY VEHICLE?

A: If the manufacturer or dealer is unable to repair a serious warranty defect in your vehicle after a “reasonable” number of
attempts, the manufacturer must either:
• Replace the vehicle.
• Refund its purchase price (whichever
you prefer).

WHAT IS A “REASONABLE” NUMBER OF REPAIR ATTEMPTS?
A: California’s Lemon Law Presumption provides guidelines for determining a “reasonable” number of repair attempts if any of the
following occurs within 18 months or 18,000 miles after the purchase or leasing of a new car, whichever occurs first.
• The manufacturer or dealer has not fixed the
same problem after four or more attempts.
• Your vehicle’s problems could cause death
or serious bodily injury if it is driven, and the manufacturer or dealer has made at least
two unsuccessful repair attempts.
• The vehicle has been in the shop for more
than 30 days (not necessarily in a row)
for repair of any problems covered by its
warranty.

DO I NEED TO GO TO COURT FOR THE LEMON LAW TO HELP ME?
A: No. In many cases, your vehicle’s
manufacturer may offer a state-certified
arbitration program that may assist you in resolving your dispute. If so:
• You must request arbitration to claim the benefits of the Lemon Law Presumption.
• You may accept or reject the arbitrator’s decision.

I BOUGHT MY VEHICLE USED WITH

NO NEW VEHICLE WARRANTY. DOES CALIFORNIA’S LEMON LAW STILL APPLY TO MY VEHICLE?

A: No. The Lemon Law applies only to
disputes involving the manufacturer’s new vehicle warranty.